tract, but left the parties to law (*d*), and the bill was dismissed without costs (*e*).

50. **Letting into possession.** — The purchaser, after the contract, should not be let into *possession* of the estate until the completion of the sale by payment of the full purchase-money (*f*).

51. **Of "granting" in the operative part of the conveyance.** — Formerly, in drawing the conveyance, the word "*grant*" being commonly (though erroneously) supposed to contain a warranty (*g*), the trustee, instead of "granting, bargaining, selling, and releasing," was often, from extra caution, made to "bargain, sell, and release," with the omission of the word "grant"(*h*). And still, as formerly, in order to secure the trustees from the possibility of parting with any interest vested in them beneficially, or from being construed to guarantee anything beyond the powers of their trust, it is not unusual to insert in the operative part of the instrument the words "according to their estate and interest as such trustees."

52. **Covenants.** — A trustee cannot be compelled to enter into any other covenant for *title* than against incumbrances by his own acts (*i*). But *it would be [*442] prudent in trustees to apprise the public that they

(*d*) Wedgwood *v.* Adams, 6 Beav. 600.

(*e*) S. C. 8 Beav. 103.

(*f*) Oliver *v.* Court, 8 Price, 166, *per* Chief Baron Richards; see Browell *v.* Reed, 1 Hare, 434.

(*g*) See Co. Lit. 384*a*, note (1), Hargrave and Butler's edit.

(*h*) See now 8 & 9 Vict. c. 106, s. 4.

(*i*) White *v.* Foljambe, 11 Ves. 345, *per* Lord Eldon; Onslow *v.* Lord Londesborough, 10 Hare, 74, *per Cur.*; Worley *v.* Frampton, 5 Hare, 560; Stephens *v.* Hotham, 1 K. & J. 571; and Page *v.* Broom, 3 Beav. 36. This is carried to such an extent that, where a lessor grants a lease with a covenant for perpetual renewal, devisees in trust of the lessor, though bound to grant a new lease, are not bound to enter into a similar covenant. In these cases the Court has, in order to secure the lessee without making the trustees personally liable, declared the right of the lessee to a perpetual renewal, and directed the new lease to contain a recital of the old lease, and of the declaration of the Court in obedience to which the trustees purport to demise; Copper Mining Company *v.* Beech, 13 Beav. 478; Hodges *v.* Blagrave, 18 Beav. 405. So, if A. agrees to grant a lease to B. and B. dies, A. can compel the executors of B. to accept the lease, but the lease is so framed that the executors of B. are guarded against all personal liability; Phillips *v.* Everard, 5 Sim. 102; Stephens *v.* Hotham, 1 K. & J. 571; but in the